

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No:
Date Filed:

-----X
DAVID JONES,

Plaintiff,

Plaintiff designates
KINGS COUNTY
as the place of trial

-against-

The basis of the venue is:
Place where the cause of
action arose

SUMMONS

THE CITY OF NEW YORK, POLICE OFFICER JAY
RIVERA (Tax # 935599), and POLICE OFFICERS
JOHN DOE 1-3.

The plaintiff resides at:
Kings County, New York

Defendants.
-----X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney within twenty days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear, judgment will be taken against you by default for the relief demanded in the complaint set forth below.

Dated: Brooklyn, New York
April 3, 2015

Yours, etc.

LAW OFFICES OF WALE MOSAKU, P.C.

BY: WALE MOSAKU
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

THE CITY OF NEW YORK
C/O New York City Corporation Counsel
100 Church Street
New York, N.Y. 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index No.
DAVID JONES,

Plaintiff,

-against-

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER JAY
RIVERA (Tax # 935599), and POLICE OFFICERS
JOHN DOE 1-3.

Defendants.

-----X

DAVID JONES (hereinafter "plaintiff"), by his attorney(s) THE LAW OFFICES OF
WALE MOSAKU, P.C., complaining of the defendants THE CITY OF NEW YORK,
POLICE OFFICER JAY RIVERA (Tax # 935599) and POLICE OFFICERS JOHN DOE
1-3 (collectively referred to as "the defendants"), upon information and well founded
belief, alleges as follows:

NATURE OF THE ACTION

1. This is an action at law to redress the deprivation of rights secured to
the plaintiff under color of statute, ordinance, regulation, custom;
and/or to redress the deprivation of rights, privileges, and immunities
secured to the plaintiff by the Fourth, Fifth, Sixth and Fourteenth
Amendments to the Constitution of the United States; and by Title 42
U.S.C. §§ 1982, 1983 and 1985; and arising under the laws and
statutes of the City and/or State of New York.

THE PARTIES

2. The plaintiff is a resident of the City of New York, who resides in
Kings County, City and State of New York. Plaintiff is an African
American male of full age.
3. At all relevant times, defendants POLICE OFFICER JAY RIVERA
(Tax # 935599) and POLICE OFFICERS JOHN DOE 1-3
(hereinafter "defendant officers") of the New York City Police

Department (hereinafter "NYPD"), were and still are law enforcement officers in the employ of the NYPD

4. At all times herein, the defendant officers were acting under the color of their official capacity, and their acts were performed under color of the statutes and ordinances of the City of New York and/or the State of New York. The defendant officers were the servants, agents, and employees of their co-defendant, the City of New York, so that their acts are imputed to the City of New York and the NYPD.
5. At all relevant times, the defendant City of New York was/is a municipal corporation of the State of New York, and was/is the employer of the defendant officers, through its Police Department, namely NYPD, and the actions of the defendant officers complained of herein were done as part of the custom, practice, usage, regulation and/or direction of the City of New York.
6. The plaintiff sues all defendants in their individual and official capacities.

SATISFACTION OF THE PROCEDURAL PREREQUISITES FOR SUIT

7. All conditions precedent to filing of this action have been complied with; on October 30, 2014, within ninety days after the claim(s) alleged in this complaint arose, a written notice of claim, sworn to by the plaintiff and/or his representative, was served upon the defendant City of New York by personal delivery of the notice in duplicate, to the person designated by law as one to whom a summons issued against such party may be delivered in an action in the applicable Courts. Plaintiff's claim was assigned Claim No. 2014PI032983.
8. At least thirty days have elapsed since the service of the above-mentioned notice of claim, and adjustment or payment of the claim has been neglected or refused.

This action, pursuant to New York State and City Law, has been commenced within one year after the happening of the event upon which the malicious prosecution claim is based.

FACTUAL ALLEGATIONS

9. On or about June 24, 2014, at approximately 10:00 a.m., on the curb in front of the premises known and described as 595 Vermont Street, Brooklyn, New York 11207 ("subject premises"), the plaintiff was arrested without probable cause by the defendant officers.
10. That at the time of the arrest, and presently, the plaintiff owned the subject premises.
11. That at the time of the arrest, and presently, the plaintiff resided at the subject premises.
12. That prior to his arrest, the plaintiff was standing on the curb in front of his house.
13. That as the plaintiff was standing there, his friend Kowan Owens pulled up to the curb of the subject premises in a vehicle, described as a Honda Accord.
14. That at the time he pulled up to the curb, Mr. Owens had a male passenger in the vehicle.
15. That upon pulling up to the curb, the male passenger that was in Mr. Owens vehicle exited the vehicle, and went to a grocery store that was at the corner of Livonia Avenue and Vermont Street.
16. After the male passenger in Mr. Owens vehicle exited the vehicle, the plaintiff entered into Mr. Owens vehicle, sat in the back seat, and exchanged greetings with Mr. Owens.
17. As the plaintiff was conversing with Mr. Owens, a tenant, namely Jamal Moore, that resides in the plaintiff's premises came outside and sat on the stoop.
18. Shortly thereafter, an NYPD vehicle, within which were the defendant officers, pulled up and stopped adjacent to Mr. Owens' vehicle.
19. One of the defendant officers exited the NYPD vehicle and immediately went over to Mr. Moore who was still seated on the stoop.

20. Upon observing the plaintiff and Mr. Owens in Mr. Owens' vehicle, the remaining defendants in the NYPD vehicle then exited their vehicle, and approached Mr. Owens vehicle.
21. Upon arriving at Mr. Owens' vehicle, the plaintiff and Mr. Owens were instructed to exit the vehicle, which they did.
22. Mr. Owens' vehicle was then searched without probable cause by the defendant officers. Nothing illegal was found or recovered from Mr. Owens vehicle.
23. The plaintiff and Mr. Owens were then unlawfully searched without probable cause by the defendant officers.
24. Nothing illegal was found or recovered from the plaintiff or Mr. Owens.
25. As the plaintiff was being searched, he protested at being subjected to the above-described harassing treatment from the defendant officers.
26. In addition, as he and Mr. Owens were being searched, the plaintiff also observed that Mr. Moore was being placed in handcuffs, and inquired as to the reason why.
27. At that juncture, the plaintiff was himself placed in handcuffs.
28. When the plaintiff inquired as to the reason he was placed in handcuffs, he was not given a reason, but told he would be informed after he arrived at the precinct.
29. The plaintiff was then transported to the 75th Police Precinct, along with Mr. Moore. Mr. Owens was not arrested.
30. Upon arrival at the 75th Precinct, the plaintiff was informed that he was being charged with possession of marijuana. While at the precinct the plaintiff was "processed" or otherwise fingerprinted and photographed.
31. At approximately 01:00 a.m. on June 25, 2014, the plaintiff was released from the precinct, after being issued with a Desk Appearance Ticket ("DAT") (Serial # 075-01367).

32. The DAT was issued by Police Officer Jay Rivera, and mandated the claimant to report to NYC Criminal Court on October 22, 2014 to defend himself against the following charge: Criminal Possession of Marijuana in the 5th Degree [P.L. 221.10(1)].
33. On October 22, 2014 the plaintiff dutifully reported to Court, determined to defend himself against the false and spurious charges.
34. Upon reporting to Court, the plaintiff was informed that the charges had been dismissed that day.
35. However, subsequently, the plaintiff received information that in fact, the Kings County District Attorney's office had declined to prosecute him.
36. The plaintiff's arrest number was "K14656372".

CAUSE OF ACTION: UNLAWFUL SEARCH UNDER 42 U.S.C § 1983

37. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 36 of this complaint as though fully set forth herein.
38. Following the plaintiff's arrest, the defendant officers searched/strip searched and/or caused the plaintiff and/or his property to be searched/strip searched, without any individualized reasonable suspicion that he was concealing weapons or contraband.
39. As a result of the foregoing, the plaintiff and/or his property was/were subjected to illegal and improper search(es)/strip search(es).
40. The foregoing unlawful search violated the plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.
41. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.

CAUSE(S) OF ACTION: FALSE ARREST AND FALSE IMPRISONMENT UNDER
42 U.S.C § 1983 and NEW YORK STATE LAW

42. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 41 of this complaint as though fully set forth herein.
43. The above-described respective arrest, detention and imprisonment of the plaintiff were without just or probable cause and without any warrant or legal process directing or authorizing the plaintiff's arrest or subsequent detention.
44. As a result of plaintiff's above-described false arrest and detention, he has been caused to suffer humiliation, great mental and physical anguish, embarrassment and scorn among those who know him, was prevented from attending to his necessary affairs, and has been caused to incur legal expenses, and has been otherwise damaged in his character and reputation.
45. Consequently, the plaintiff has been damaged and hereby demands compensatory and punitive damages in an amount to be proven at trial against each of the defendant officers, individually and severally.

CAUSE(S) OF ACTION: MALICIOUS PROSECUTION UNDER NEW
YORK STATE LAW/§ 42 U.S.C § 1983

46. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 45 of this complaint as though fully set forth herein.
47. The commencement and continued prosecution of the criminal judicial proceeding against plaintiff, including the arrest, the imprisonment, and the charges against plaintiff were committed by or at the insistence of the defendant officers without probable cause or legal justification, and with malice.
48. That the defendant officers were directly involved in the initiation of criminal proceedings against the plaintiff.

49. That the defendant officers lacked probable cause to initiate criminal proceedings against the plaintiff.
50. That the defendant officers acted with malice in initiating criminal proceedings against the plaintiff.
51. That the defendant officers were directly involved in the continuation of criminal proceedings against the plaintiff.
52. That the defendant officers lacked probable cause in continuing criminal proceedings against the plaintiff.
53. That the defendant officers acted with malice in continuing criminal proceedings against the plaintiff.
54. That the defendant officers misrepresented and falsified evidence throughout all phases of the criminal proceeding.
55. That the defendant officers misrepresented and falsified evidence to the prosecutors in the Kings County District Attorney's office.
56. That the defendant officers withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.
57. That the defendant officers did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.
58. The criminal judicial proceeding, which was initiated by the issuance of the DAT, terminated in the plaintiff's favor when the Kings County District Attorney's office declined to prosecute him. See Stampf v. Long Island R.R. 761 F.3d 192 (2d Cir. 7/30/2014)
59. The arrest, imprisonment and prosecution of the plaintiff were malicious and unlawful, because plaintiff had committed no crime and there was no probable cause to believe that plaintiff had committed any crimes.
60. The defendant officers actions were intentional, unwarranted and in violation of the law. The defendant officers had full knowledge that the charges made before the Court against the plaintiff were false and untrue.

61. As a consequence of the malicious prosecution by the defendant officers, plaintiff suffered a significant loss of liberty, humiliation, mental anguish, depression, and his constitutional rights were violated.
62. Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against the defendant officers and the City of New York, individually and severally.
63. The defendant officers were at all material times acting within the scope of their employment, and as such, the defendant City is vicariously liable for the defendant officers acts as described above.
64. This action falls within one or more of the exceptions of the New York State Civil Practice Law and Rules §1602.

CAUSE OF ACTION: DENIAL OF A CONSTITUTIONAL RIGHT TO A FAIR TRIAL UNDER 42 U.S.C § 1983 DUE TO THE FABRICATION OF EVIDENCE

65. By this reference, plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 64 of this complaint as though fully set forth herein.
66. The defendant officers created false evidence against the plaintiff.
67. The defendant officers forwarded false evidence and false information to the prosecutors in the Kings County District Attorney's office.
68. That the defendant officers were directly involved in the initiation of criminal proceedings against the plaintiff.
69. That the defendant officers lacked probable cause to initiate criminal proceedings against the plaintiff.
70. That the defendant officers acted with malice in initiating criminal proceedings against the plaintiff.
71. That the defendant officers was directly involved in the continuation of criminal proceedings against the plaintiff.

72. That the defendant officers lacked probable cause in continuing criminal proceedings against the plaintiff.
73. That the defendant officers acted with malice in continuing criminal proceedings against the plaintiff.
74. That the defendant officers misrepresented and falsified evidence throughout all phases of the criminal proceeding.
75. That the defendant officers misrepresented and falsified evidence to the prosecutors in the Kings County District Attorney's office.
76. That the defendant officers withheld exculpatory evidence from the prosecutors in the Kings County District Attorney's office.
77. That the defendant officers did not make a complete statement of facts to the prosecutors in the Kings County District Attorney's office.
78. By creating false evidence against the plaintiff; forwarding false evidence and information to the prosecutors; and by providing false and misleading testimony throughout the criminal proceedings, the defendant officers violated the plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments to the United States Constitution.
79. As a consequence of the defendant officers' actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in an amount to be determined at trial, against each of the defendants, individually and severally.

CAUSE OF ACTION: FAILURE TO INTERVENE UNDER 42 U.S.C § 1983

80. By this reference, the plaintiff incorporates each and every allegation and averment set forth in paragraphs 1 through 79 of this complaint as though fully set forth herein.

81. The defendant officers had an affirmative duty to intervene on the plaintiff's behalf to prevent the violation to his constitutional rights, as more fully set forth above.
82. The defendant officers failed to intervene on the plaintiff's behalf to prevent the violation of his constitutional rights, despite having had a realistic and reasonable opportunity to do so.
83. As a consequence of the defendant officers' actions, plaintiff suffered loss of liberty, humiliation, mental anguish, depression, loss of wages from work, and his constitutional rights were violated. Plaintiff hereby demands compensatory damages and punitive damages, in the amount of to be determined at trial, against each of the defendants, individually and severally.

WHEREFORE, plaintiff prays for judgment against the defendants, individually and severally, as follows: for compensatory damages against each defendant in an amount to be proven at trial; for exemplary and punitive damages against each defendant in an amount to be proven at trial; for costs and expenses of suit herein, including plaintiff's reasonable attorney's fees; for pre-judgment and post-judgment interest; all in a sum of money that exceeds the jurisdiction of all lower Courts, and for such other and further relief as this court deems just and appropriate.

Dated: Brooklyn, New York
April 3, 2015

LAW OFFICES OF WALE MOSAKU, P.C.

By: 

Wale Mosaku
Attorney for the Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, N.Y. 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X Index #:

DAVID JONES,

Plaintiff,

-against-

ATTORNEY
CERTIFICATION
PURSUANT TO 22 NYCRR
Part 130-1.1(c)

THE CITY OF NEW YORK, POLICE OFFICER JAY
RIVERA (Tax # 935599), and POLICE OFFICERS
JOHN DOE 1-3,

Defendants.

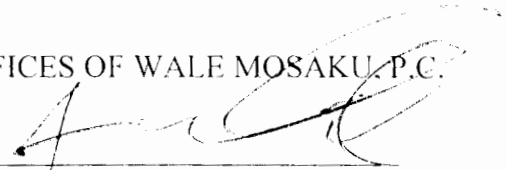
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The undersigned attorney does hereby certify:

That I am the attorney for the plaintiff and duly admitted to practice law before the
Courts of the State of New York. I do hereby provide this signed certification pursuant to
22 NYCRR Part 130-1.1 (c), that the papers that I have served, filed or submitted to the
Court in this action are not frivolous.

Dated: Brooklyn, New York
April 3, 2015

LAW OFFICES OF WALE MOSAKU, P.C.


BY: Wale Mosaku, Esq.
Attorney(s) for Plaintiff
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF KINGS

Index No.

DAVID JONES,

Plaintiff(s) ,

-against-

THE CITY OF NEW YORK, POLICE OFFICER JAY
RIVERA (Tax # 935599), and POLICE OFFICERS
JOHN DOE 1-3,

Defendant(s) .

SUMMONS AND COMPLAINT

LAW OFFICES OF WALE MOSAKU, P.C.
Attorney(s) for Plaintiff(s)
25 Bond Street, 3rd Floor
Brooklyn, New York 11201
(718) 243-0994

To:

Service of a copy of the within
is hereby admitted.

Dated:..... 201_

Attorney(s) for Defendant(s)
